BY ORDER OF THE COMMANDER
42D AIR BASE WING (AETC)

AIR FORCE INSTRUCTION 31-205

MAXWELL AIR FORCE BASE SUPPLEMENT

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Security

THE AIR FORCE CORRECTIONS SYSTEM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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AFI 31-205, 7 April 2004, is supplemented as follows.

This supplement implements AFI 31-205, *The Air Force Corrections System*. It establishes guidance and procedures for the Air Force Corrections System (AFCS) on Maxwell AFB. Failure to observe the prohibitions of this supplement may result in administrative actions or other disciplinary measures. The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the Air Force. Use AF Form 847, *Recommendation for Change of Publication*, to recommend changes to this supplement; see Attachment 4 (Added) (MAFB). Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with AFMAN 37-123, *Management of Records,* and disposed of in accordance with the Air Force Records Disposition Schedule (RDS), located at https://afrims.amc.af.mil/. This supplement applies to all units assigned or attached to Maxwell AFB, except US Air Reserve, Air National Guard, or the Federal Prison Camp located on Maxwell AFB.

SUMMARY OF CHANGES

This interim change updates the OPR, Certifying and Approving Officials; updates office symbols throughout, adds additional guidance pertaining to organizations providing health and comfort supplies to their personnel in confinement and local requirements for marriage while serving a sentence in confinement. A margin bar indicates newly revised material.

1.2.2.2. A Memorandum of Agreement (MOA) is current and on file in Confinement (42 SFS/S3C) and Plans and Programs (42 SFS/S5P) offices authorizing the use of the Montgomery County Jail as an overflow facility.

1.2.2.2.1. A MOA is coordinated to house both male and female overflow inmates due to lack of bed space at this facility. The parent unit should provide temporary billeting arrangements for inmates whose offense is a non-violent offense and does not warrant more than one escort if arrangements for overflow cannot be met at the county jail.

1.2.7. The Confinement Facility at Maxwell AFB is designated as a level 1 confinement facility and has the capability of housing pre-trial detainees or post-trial inmates for 180 days or less, or up to 1 year with HQ AFSFC/SFC approval.

1.3.10.1. Parent unit commanders or designees (E-7 or above) are responsible for confined personnel, regardless of location, until formal transfer of the confined person is complete. This responsibility includes, but is not limited to, providing escorts, assisting confined member's family, visiting confined members at least monthly and obtaining transfer orders. The commander or designee also assigns escorts (after being given an escort briefing) for all routine matters; for example, dental/medical appointments, base details etc.

2.1. The Operations Officer (42 SFS/S3) is appointed as the confinement officer. The 42 SFS/S3C is appointed as the confinement NCO.

2.3. The training section (42 SFS/S3T), in conjunction with 42 SFS/S3C, is responsible for developing and maintaining local training on confinement/corrections procedures.

3.2.7. Any victim/witness, as a result of threat, battery or fear of bodily harm from an adjudged, pre-trial or sentenced inmate should contact the Staff Judge Advocate (SJA) or corrections officer for action and guidance on this matter. The correction officer and the SJA coordinate efforts to provide the witness protection under the Victim and Witness Rights Program.

5.1.1. If confinement is ordered for reasons other than as a result of trial such as pre-trial confinement, the commander of the member being confined signs the confinement order. In their absence, the installation commander or designated representative may sign. Promptly upon pre-trial confinement, the person is advised by AF IMT 444, Advisement of Rights upon Pre-trial Confinement, as to why they are confined, as required by Rule for Courts-Martial 304 and 305, Manual for Courts-Martial, by the Briefing Official (the person ordering confinement) and is witnessed by confinement staff personnel or representative. The form must be signed by the inmate, briefing official and witness.

5.1.2. If the person is being confined as a result of trial, the trial counsel, assistant trial counsel or the confinee's commander may sign the DD Form 2707, Confinement Order, authorizing confinement. The trial counsel notifies the security forces desk sergeant, who dispatches two patrolmen who have been trained and who are familiar with confinement procedures. The patrolmen take the inmate into custody, and pick up a completed copy of the AF IMT 1359, Report of Result of Trial, and a DD Form 2707.

5.3.2.5. A base psychiatrist evaluates each prisoner upon initial confinement. The evaluation determines if the inmate is a suicidal or homicidal risk and develops a plan for follow-on appointments.

6.1.1.2. Organizations with members in confinement on a non-pay status use installation Operation and Maintenance funds or squadron-appropriated funds to acquire health and comfort supplies. The confinement officer has established a health and comfort stock to provide needed supplies to inmates until the parent unit can provide them. Any mandatory items missing during initial inventory must be delivered by the parent unit within 72 hours of initial confinement.

6.4. Inmates' visiting hours are Sunday and federal holidays from 1300 until 1500, unless previously approved by the confinement officer or NCOIC.

6.6. The SFS/CC may approve inmate marriages, but will encourage personnel to wait until after their sentence to confinement is completed. Title 30 of the Code of Alabama governs Marital and Domestic Relations. Section 30—1-14 of the Code delineates the the minimum age for contracting marriage in Alabama is 16. Anyone under the age of 18, however, is subject to following the provision of Section 30-1-5, which outlines the prerequisites that must be completed for marriage. Section 30-1-9 states, "Marriage licenses may be issued by the judges of probate of the several counties." In Montgomery County, no blood test is required for a marriage license. Cost for the license is payable in the form of Cash, Visa, Mastercard, or local check. Once the license is issued it is valid for 30 days from the date of issuance. For persons over the age of 18 and residents of Alabama, the following is required: an official picture ID, certified copy of birth certificate, a second form of identification like a social security card. Incarcerated applicants must supply a letter of approval from the Warden for the incarcerated person and identification. In addition to local requirements, all requirements IAW AFI 31-205, Attachment 24 will be followed. NOTE: This information is general in nature and should not be construed as legal advise. In the event a member while in a confinement facility requests to be married, coordination should occur with the base legal office.

8.2. The 42 SFS/CC has determined a vehicle operator can serve as an escort when on the installation.

9.2. Pre-transfer conference is held with the inmate, inmate's first sergeant or designee, confinement officer and NCOIC to explain the purpose of transfer and resolve personal property and funds disposition. A letter is maintained in the correctional treatment file (CTF).

11.5. The 42 SFS/CC directs the use of the security forces gym, located in Bldg 929, as the designated facility for inmate workouts.

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